



2025:AHC:210807-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 41469 of 2025

Shahnaj Begum

.....Petitioner(s)

Versus

U.P. Electricity Regulatory Commission
Lucknow And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Arun Mishra, Vijay Pratap Singh
Counsel for Respondent(s)	: Ajay Singh, Narendra Kumar Tiwari

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner and learned counsel for the respondents.

2. The petitioner earlier approached this Court by filing Writ-C No.27946 of 2025 with the following prayer:-

"(i) Issue a writ, order or direction in the nature of Mandamus commanding respondents No. 2 to reduce the load of the petitioner from 32KVA to 5 KVA after completing the mandatory requirement prescribed in Clause 4.41(a) of Electricity Supply Code, 2005, forthwith.

(ii) Issue a writ, order or direction in the nature of Mandamus commanding respondent No. 2 to delete the amount of excess load penalty from the bill of petitioner."

3. This Court vide order dated 26.08.2025 dismissed the Writ-C No.27946 of 2025 which is being reproduced herein below:-

"Mr. Arun Mishra, learned advocate appears on behalf of petitioner and submits, prayer of his client is for reduction in the load, from 32 KVA to 5 KVA.

Mr. Narendra Kumar Tiwari, learned advocate appears on behalf of respondent nos.1 and 2 (the supply company) and hands-up his

instructions on submission, there are outstandings. Petitioner has to first clear them. Her prayer for reduction of the load is to avoid payment of the arrears on two counts, theft and consumption. Mr. Mishra submits, the information was not communicated to his client. Mr. Tiwari having had handed up two copies of his instructions, one is given to Mr. Mishra.

We are not inclined to interfere.

The writ petition is dismissed."

4. Now, the petitioner has filed the present writ petition praying for the following relief:-

"I) Issue appropriate writ holding Clause 4.41(a) (iv) of the U.P. Electricity Supply Code, 2005 as arbitrary and whimsical.

II) Issue a writ, order or direction in the nature of Mandamus commanding respondents No. 3 to reduce the load of the petitioner from 32KVA to 5KVA without insisting to deposit amount of assessment pursuant to alleged inspection without conclusion of adjudication pending before the Special Court U/s 154(5) of the Electricity Act, 2003."

5. According to the petitioner, during the course of argument in Writ-C No.27946 of 2025, instructions were supplied in which it was stated that there were two outstanding dues and without clearing the dues, load cannot be reduced. Accordingly, on the basis of instructions, Writ-C No.27946 of 2025 was dismissed.

6. From paragraphs No.7 to 9 of the writ petition, it is evident that the petitioner is virtually seeking the relief of reduction of load -

"7. That the ground taken for not reducing the load is arrear on two counts, theft and consumption but that too was never communicated to the petitioner. Copy of instruction is annexed as Annexure 4 to this petition.

8. That petitioner apprised the respondent No. 3 vide communication dated 23.09.25 that she deposited the entire dues of her regular connection and inasmuch as, the alleged dues in relation to the theft is pending adjudication before the Special Court constituted U/s 153 of the Electricity Act, 2003 and the same has to be finally adjudicated by the Court U/s 154(5) of the Electricity Act, 2003. Copy of letter is annexed Annexure 5 to this petition.

9. That respondent No. 3 relied on arbitrary Clause 4.41(a)(iv) of the U.P. Electricity Supply Code, 2005 by which it was made mandatory that

latest bill shall be paid in full, whereas there is no such condition provided in Clause 4.42 of the U.P. Electricity Supply Code, 2005 for enhancement of load."

7. From the relief extracted above in the present writ petition, it is evident that the petitioner wants the same relief which he has sought in Writ-C No.27946 of 2025 on new grounds.

8. The plea which the petitioner is taking in the present writ petition could have very well been taken in Writ-C No.27946 of 2025 and on the principle of constructive resjudicata, the aforesaid plea cannot be allowed to be raised by filing present writ petition when the earlier writ petition i.e. Writ-C No.27946 of 2025 virtually seeking the same relief, as has been claimed in the present writ petition, has been dismissed by this Court.

9. The law is settled that a successive writ petition on the same cause of action is not maintainable.

10. In such view of the fact, the writ petition is misconceived and is **dismissed**.

**November 25,
2025**

SS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)